

11. 9:00 AM CASE NUMBER: MSC17-01486
CASE NAME: DOSKOCZ VS. ALS
***HEARING ON MOTION IN RE: ENFORCE JUDGMENT AFTER TRIAL**
FILED BY: DOSKOCZ, TERESA
TENTATIVE RULING:

Hearing continued by motion of the court to February 20, 2026, at 9 a.m.

12. 9:00 AM CASE NUMBER: N22-1685
CASE NAME: JINGHUI XU VS. MELVINDER GILL
***HEARING ON MOTION IN RE: DEFAULT JUDGMENT; RECALL AND QUASH WRIT**
FILED BY: GILL, MELVINDER
TENTATIVE RULING:

Denied.

13. 9:00 AM CASE NUMBER: N25-1127
CASE NAME: KEVIN WOODRUFF VS. SECRETARY OF VETERAN AFFAIRS
HEARING ON PETITION IN RE: FOR NUNC PRO TUNC WRIT OF ERROR CORAM NOBIS FOR
EQUITABLE RELIEF.
FILED BY:
TENTATIVE RULING:

Hearing continued to February 20, 2026, at 9:00 a.m.

Judge Danielle Douglas, department 18, recuses herself from this matter.

14. 9:00 AM CASE NUMBER: N25-1127
CASE NAME: KEVIN WOODRUFF VS. SECRETARY OF VETERAN AFFAIRS
HEARING ON DEMURRER TO: PETITION.
FILED BY:
TENTATIVE RULING:

Hearing continued to February 20, 2026, at 9:00 a.m.

Judge Danielle Douglas, department 18, recuses herself from this matter.

15. 9:00 AM CASE NUMBER: N25-1185
CASE NAME: HEZEKIAH GRAY VS. REGISTRAR OF CONTRACTORS, CSLB, DCA
***HEARING ON MOTION IN RE: WRIT OF ADMIN. MANADAMUS**
FILED BY: GRAY, HEZEKIAH KAREEM
TENTATIVE RULING:

Petitioner Hezekiah Kareem Gray dba Freeway Mechanical filed a petition for writ of administrative mandamus under Code of Civil Procedure section 1094.5.

This case arises from construction work performed by Jesse Diaz starting in May 2022 at a

home in Santa Clara. The homeowner paid Diaz approximately \$120,241.20 to do various jobs at the house, however, Diaz did not complete the work and what was done was unsatisfactory. The cost to correct and finish the project is \$158,500.

Diaz told the homeowner that he was licensed under Freeway Mechanical and used Freeway's licensed number. At some point in 2022, Diaz stopped working on the house and did not return the payments. The homeowner terminated Diaz from the project in October 2022. The homeowner never spoke with Petitioner Gray until after Diaz stopped working on the project.

Petitioner had previously received discipline from the Contractors State License Board when his company continued to work on a project during a 7-day suspension in 2013. (Exhibit 5.) The suspension was related to the failure to pay a judgment from the Labor Commissioner and the failure to list that judgment on licensing applications.

The Contractors State License Board began investigating Gray and filed an accusation against him for aiding and abetting an unlicensed person to evade the law under Business and Professions Code section 7114. During the administrative hearing on this matter (case no N2023-282.), the Board added a second cause for employing a person without having workers' compensation coverage. The administrative law judge issued a proposed decision on April 2, 2025, finding that Petitioner had violated both causes included in the accusation. The ALJ's discipline decision was to revoke the contractor's License Number 979656 that was issued to Freeway Mechanic; to prevent Gray from applying for a reissuance of the license or for any new license for four years; and require Gray to pay restitution. The Registrar of Contractors of the Contractors State License Board subsequently agreed with the proposed decision and issued a decision and order against Petitioner (Order No. 2024070424).

Petitioner raises four arguments in this proceeding: (1) the unfairness of Petitioner's trial due to (i) the ALJ's lack of impartiality based on the improper combination of prosecutorial and judicial functions and (ii) the lack of notice due to a belated amendment to the charging document contrary to Gov. Code § 11507; (2) the Registrar's Decision and Order is not supported by adequate findings with respect to the two violations and related restitution and costs; (3) the Registrar's findings are not supported by the evidence; and (4) the Registrar's imposed discipline contrary to the Disciplinary Guidelines.

Standards of Review

When reviewing a writ under section 1094.54, "[t]he inquiry in such a case shall extend to the questions whether the respondent has proceeded without, or in excess of, jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion. Abuse of discretion is established if the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence." (Code Civ. Proc., § 1094.5 (b).)

"Where it is claimed that the findings are not supported by the evidence, in cases in which the court is authorized by law to exercise its independent judgment on the evidence, abuse of discretion

is established if the court determines that the findings are not supported by the weight of the evidence.” (Code Civ. Proc., § 1094.5 (c).)

“After an administrative agency imposes discipline on a professional licensee, the trial court to which application for mandate is made exercises its independent judgment on the facts.” (*Griffiths v. Superior Court* (2002) 96 Cal.App.4th 757, 767; *Yazdi v. Dental Bd. of California* (2020) 57 Cal.App.5th 25, 33.) “Under the independent judgment rule, the trial court must weigh the evidence and make its own determination as to whether the administrative findings should be sustained.” (*Yazdi, supra*, 57 Cal.App.5th at 32.)

In *Li v. Superior Court* (2021) 69 Cal.App.5th 836, the court held that when a trial court is exercising its independent judgment, it should “account for the standard of proof in the underlying administrative proceeding when exercising its independent judgment in reviewing the sufficiency of the evidence supporting the administrative agency's findings.” (*Li v. Superior Court* (2021) 69 Cal.App.5th 836, 865.) Here, that means the Court should exercise its independent judgment “*in the context of* whether the findings are supported by clear and convincing evidence, rather than a mere preponderance of the evidence...” (*Li v. Superior Court* (2021) 69 Cal.App.5th 836, 865.)

There is some conflict between *Yarzdi* and *Li* regarding whether the trial court should exercise its independent judgment by considering if there is a preponderance of the evidence or clear and convincing evidence. The Court finds that the standard expressed in *Li* is correct and therefore, the Court must exercise its independent judgment by weighing the evidence to determine if the findings are supported by clear and convincing evidence.

“In exercising its independent judgment, a trial court must afford a strong presumption of correctness concerning the administrative findings, and the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence.” (*Fukuda, supra*, 20 Cal.4th at p. 817.) Further, “considerable weight should be given to the findings of experienced administrative bodies made after a full and formal hearing, especially in cases involving technical and scientific evidence.” (*Id.* at p. 812.)

When considering credibility, “[i]f the factual basis for the decision includes a determination based substantially on the credibility of a witness, the statement shall identify any specific evidence of the observed demeanor, manner, or attitude of the witness that supports the determination, and on judicial review the court shall give great weight to the determination to the extent the determination identifies the observed demeanor, manner, or attitude of the witness that supports it.” (Gov. Code, § 11425.50 (b).) Where the credibility standard does not meet section 11425.50, “the trial court has the power and responsibility to weigh the evidence at the administrative hearing and to make its own determination of the credibility of witnesses.” [Citation.]” (*Barber v. Long Beach Civil Service Com.* (1996) 45 Cal.App.4th 652, 658 (emphasis removed).)

“When the superior court has conducted its review and has concluded that the agency properly found misconduct, the imposition of the appropriate penalty for that misconduct is left to the sound discretion of the agency. ‘The penalty imposed by an administrative body will not be disturbed in mandamus proceedings unless an abuse of discretion is demonstrated.’ [Citation.]”

(*Kazensky v. City of Merced* (1998) 65 Cal.App.4th 44, 53.) “ ‘The discipline imposed will not be disturbed unless it is shown to have been a manifest abuse of discretion.’ [Citation.]” (*Id.* at 54; see also, *Yazdi, supra*, 57 Cal.App.5th at 34.)

Petitioner’s reliance on *Fulga v. Registrar of Contrs.* (2022) 2022 Cal. Super. LEXIS 55168 is improper. *Fulga* is an unpublished trial court opinion. That being said, the Court considered the authorities discussed in *Fulga*.

Fair Trial

Petitioner argues that he was deprived of a fair trial because the ALJ provided directions to the Agency on how to add a charge to the accusations.

“The adjudicative function shall be separated from the investigative, prosecutorial, and advocacy functions within the Agency as provided in Section 11425.30.” (Gov. Code, § 11425.10 (a)(4).) “California courts, too, recognize that the combination of prosecutorial and adjudicative functions is the most problematic combination for procedural due process purposes. [Citation.]” (*Nightlife Partners, Ltd. v. City of Beverly Hills* (2003) 108 Cal.App.4th 81, 93.)

The Government Code states that “At any time before the matter is submitted for decision, the agency may file, or permit the filing of, an amended or supplemental accusation... . All parties shall be notified of the filing. If the amended or supplemental accusation... presents new charges, the agency shall afford the respondent a reasonable opportunity to prepare his or her defense to the new charges, but he or she shall not be entitled to file a further pleading unless the agency in its discretion so orders. Any new charges shall be deemed controverted, and any objections to the amended or supplemental accusation...may be made orally and shall be noted in the record.” (Gov. Code, § 11507.)

Here, when the hearing started, the charge against Petitioner was aiding and abetting an unlicensed person. After the conclusion of testimony, the agency made an oral motion to add a new charge (Business and Professions Code section 7125.4) to the First Amended Accusation. After listening to arguments from both sides, the ALJ stated that it would allow the amendment, but offered Petitioner additional time to respond. Petitioner declined the offer of additional time. (Transcript 162-165.)

The ALJ then told the Agency “you know what to do with that”. The Agency responded “No, I don’t.” The ALJ then responded “I would like you to – let’s do this. I would like you to file a Second Amended Accusation.” (Transcript 165:7-13.)

Petitioner argues that the ALJ violated fundamental notions of administrative law and procedural due process by advising the Agency on how to amend the accusation. Here, the ALJ provided clarity on the procedural method of amending the accusation *after* the Agency made an oral motion to amend. The Court finds that the ALJ did not improperly combine prosecutorial and adjudicative functions.

Petitioner also argues that after the ALJ decided to allow the amendment, the ALJ did not give

Petitioner a reasonable opportunity to prepare a defense to the new charge. The ALJ offered Petitioner additional time, but Petitioner declined. Petitioner argues that the additional time would have been futile because the amendment occurred after the conclusion of the evidence. Petitioner has not shown the additional time was futile. The Court finds that section 11507 was met here and therefore there was no violation regarding the addition of the new charge.

Findings Supported by the Evidence

Petitioner challenges the ALJ's findings as to both violations, section 7125.4 (workers' compensation) and section 7114 (aiding and abetting).

Workers' Compensation Insurance

Licensed contractors are subject to discipline for "the employment of a person subject to coverage under the workers' compensation laws without maintaining coverage for that person . . ." (Bus. & Prof. Code § 7125.4(a).) In general, a licensed contractor must have workers' compensation insurance unless the contractor has no employees. (Bus. & Prof. Code § 7125(a), (b).)

Petitioner argues that the ALJ did not make all necessary findings to support a charge here, including that there were no findings about employment or how the workers' compensation laws were triggered to cover Diaz.

Here, the ALJ found that Petitioner violated section 7125.4(a) based upon findings 18 and 19. (ALJ Decision p.12.) Items 18 and 19 discuss Petitioner's testimony, where he testified that Diaz did two jobs for Done Right using Petitioner's license number. Petitioner testified that Diaz was representing him on the first job. For the first job, Done Right requested Petitioner's license, liability insurance and a W-9, which Petitioner provided. Done Right paid Petitioner for these jobs and then Petitioner paid Diaz cash. For both of these jobs, Petitioner did not attend the jobsite, but followed up with Done Right on at least one of the jobs to make sure the work done by Diaz was done correctly. Petitioner did not maintain worker's compensation insurance for Diaz. (ALJ Decision p.8-9.) These factual findings by the ALJ are consistent with Petitioner's testimony at the hearing.

The Court also finds that Petitioner's testimony regarding the Done Right jobs and his arrangement with Diaz are sufficient to show that Diaz was Petitioner's employee. Petitioner gave Diaz all the necessary information about Petitioner's contracting business, including license number, liability insurance and W-9. Further, Petitioner received payment from Done Right, took a portion of the payment, and provided the remainder to Diaz. The evidence is also sufficient to show that Petitioner was required to have workers' compensation insurance for his employees, which would have included Diaz, but that Petitioner did not have workers' compensation insurance during the relevant time period.

The Court finds that there is clear and convincing evidence that Petitioner violated Business and Professions Code section 7125.4(a) by failing to have workers' compensation insurance for Diaz while Diaz worked on the Done Right jobs. Therefore, the Court also finds that the conclusion by the

Registrar that Petitioner violated section 7125.4(a) is supported by the findings and evidence.

Aiding and Abetting

“Aiding or abetting an unlicensed person to evade the provisions of this chapter [. . .] or allowing one’s license to be used by an unlicensed person [. . .] with the intent to evade the provisions of this chapter constitutes a cause for disciplinary action.” (Bus. & Prof. Code § 7114(a).)

Petitioner argues that the ALJ used the wrong standard for aiding and abetting. There is no further definition of the term included in section 7000, et seq.

When deciding the amount of knowledge required, the ALJ looked to *James v. Board of Dental Examiners* (1985) 172 Cal.App.3d 1096. There the court noted that “in cases involving aiding and abetting an unlicensed person to practice dentistry, aiding and abetting implies knowledge. (*Winning v. Board of Dental Examiners* (1931) 114 Cal.App. 658, 663.)” (*James, supra*, 172 Cal.App.3d at 1108-1109.) In *Winning*, the court found that a licensed dentist was found to have aided and abet an unlicensed dental practice where the licensed dentist knew the individual was unlicensed and permitted him to use a dental office and dental equipment that the licensed dentist controlled.

In their opposition, the Agency relies on *Upasani v. State Farm General Ins. Co.* (2014) 227 Cal.App.4th 509, 519. There the court explained that “The words aid and abet as thus used have a well understood meaning and may fairly be construed to imply an intentional participation *with knowledge of the object to be attained*. A defendant who acts with actual knowledge of the intentional wrong to be committed and provides substantial assistance to the primary wrongdoer is not an accidental participant in the enterprise.” (*Upasani v. State Farm General Ins. Co.* (2014) 227 Cal.App.4th 509, 519 (internal citations and quotation marks omitted).)

Petitioner argues that *James* is not applicable because that court considered the statute related to dentistry, Business and Professions Code section 1680. Further, Petitioner argues that in both the civil and criminal contexts, aiding and abetting requires more than knowledge. In the civil context, aiding and abetting requires knowledge of the intended tort and that the defendant gave substantial assistance or encouragement to the bad actor. The jury instructions also state that mere knowledge of the tort being committed and the failure to prevent it does not constitute aiding and abetting. (CACI no. 3610.) In the criminal context, aiding and abetting includes that the defendant knew that the perpetrator intended to commit the crime; the defendant intended to aid and abet the perpetrator in committing the crime; and the defendant’s words or conduct did in fact aid and abet the perpetrator’s commission of the crime. (CALCRIM no. 401.)

The Court finds merit to Petitioner’s argument that aiding and abetting requires something more than knowledge of the unlicensed practice and the failure to stop the unlicensed practice. Under either the civil or criminal standard, aiding and abetting requires knowledge of the unlicensed practice plus some sort of assistance.

Here, the evidence shows that in 2021 and January 2022, Petitioner agreed to let Diaz work under his license for two jobs involving Done Right. Petitioner knew that Diaz did not have his own

license. Petitioner's actions in those jobs might be sufficient to show the type of assistance required for aiding and abetting, such as providing all requested documentation (including a picture of the driver's licenses, insurance information and W9) and receiving payment from Done Right and providing a portion of that payment to Diaz.

In contrast to the work with Done Right, there is no evidence that Petitioner did anything to help Diaz on the job involving the Homeowner, which started in May 2022. The evidence does not show that Petitioner helped Diaz obtain the contract, do work on the Homeowner's house or helped Diaz process payments from the Homeowner.

Further, Petitioner testified that he started receiving complaints from dissatisfied homeowners about Diaz's unlicensed work after three or four months. Originally, he testified that this was early 2021, but later clarified that it was in mid, early 2022. (Transcript 78:14-80:2; 126:2-15; 128:2-11; 142:11-18.) Petitioner testified that once he learned that Diaz was using his license on other jobs, he contacted the CSLB office for advice and then called Diaz asking him to stop. Petitioner then learned that Diaz was still using his license so he submitted a nonpermission declaration to the CSLB in August 2022. (Transcript 81:9-21, 111:22-113:24; Exhibit L.) This conduct shows actions to stop Diaz.

The Court finds that the decision that Petitioner aided and abetting Diaz in doing unlicensed work at the Homeowner's property is not supported by the findings because there is no finding that Petitioner helped or assisted Diaz in regard to the Homeowner's project. Further, the evidence presented does not support such a finding.

Discipline Decision

The Court finds that the charge for violation of Business and Professions Code section 7114(a) is not supported by the evidence and therefore, the Registrar's disciplinary decisions are also not supported by the record.

Conclusion

The Court finds that the evidence supports the finding as to a violation of Business and Professions Code section 7125.4(a). The Court also finds that the evidence does not support a finding of a violation of Business and Professions Code section 7114(a) and therefore, the Registrar abused its discretion. Therefore, **the Court grants the writ.**

This matter is remanded to the Registrar with instructions to vacate the portion of its decision and order finding a violation of section 7114(a) and vacate the disciplinary findings. The Registrar shall reconsider the disciplinary findings and enter new disciplinary findings based upon the violation of 7125.4(a).

The parties shall meet and confer on the time needed to file a writ return. Petitioner shall prepare a proposed writ consistent with this ruling.